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THE STATUTORY INSTRUMENTS ACT

(*Cap. 2A*)

REGULATORY IMPACT STATEMENTS

PURSUANT to section 8 of the Statutory Instruments Act, the Cabinet Secretary for Roads and Transport notifies the public that Regulatory Impact Statements for the following Rules and Regulations have been prepared—

- (a) The proposed Traffic (Motor Vehicle Inspection) Rules, 2025, have been made pursuant to section 119 (*g*) of the Traffic Act. The main objective of the proposed Rules is to provide structured legal framework for the inspection of motor vehicles aimed at promoting roadworthiness, reducing emissions and enhancing the overall safety of road transport.

Specifically, the Rules seek to—

- (i) introduce mandatory inspection for motor vehicles over four years old and all commercial, school and public service vehicles;
 - (ii) provide for pre-registration, post-accident and change-of-particulars inspections;
 - (iii) classify and regulate salvage vehicles including their inspection and re-registration procedures;
 - (iv) establish the standards and processes for issuing inspection stickers;
 - (v) provide for licensing and regulation of private vehicle testing centres and inspectors; and
 - (vi) introduce penalties and enforcement mechanisms for non-compliance with inspection requirements.
- (b) The proposed Traffic (School Transport) Rules, 2025, have been made pursuant to sections 105B (3) and 119 (*p*) of the Traffic Act. The objective of the proposed Rules is to provide a comprehensive framework for the safe, professional and regulated transportation of school-going children in Kenya.

Specifically, the Rules seek to—

- (i) establish a licensing framework for school transport providers and vehicles;

- (ii) prescribe minimum safety standards and vehicle requirements including seat belts, fire extinguishers and telematics systems;
 - (iii) define qualification standards for school drivers and attendants;
 - (iv) regulate the conduct and responsibilities of drivers, attendants and crossing guards;
 - (v) outline operational protocols including designated hours of operations and boarding procedures;
 - (vi) prohibit the use of school transport vehicles for unauthorized private purposes without a temporary licence;
 - (vii) prescribe standards for signage, colour coding and marking of school vehicles; and
 - (viii) introduce offences and penalties for non-compliance alongside an appeal mechanism.
- (c) The proposed Traffic (Drink Driving) Rules, 2025, have been made pursuant to section 109 (1) (*na*) of the Traffic Act. The objective of the proposed Rules is to strengthen the legal and enforcement framework for preventing and penalizing driving under the influence of alcohol.

Specifically, the Rules seek to—

- (i) prescribe legal alcohol limits for drivers;
 - (ii) prohibit operation of motor vehicles while intoxicated beyond the prescribed limits;
 - (iii) provide for alcohol testing using approved breathalysers, blood and urine samples;
 - (iv) outline the procedure for conducting tests and handling specimens;
 - (v) define the consequences of refusing to provide specimens when requested by law enforcement;
 - (vi) establish rules for the admissibility of test results in court; and
 - (vii) provide a graduated penalty regime for repeat offenders including suspension and revocation of driving licences.
- (d) The proposed National Transport and Safety (Operation of Commercial Vehicles) Regulations, 2025, have been made

pursuant to section 54 of the National Transport and Safety Authority Act, the main objective of the Regulations is to enhance the regulation, licensing and operational standards of commercial service vehicles in Kenya to promote accountability, safety and professionalism in road transport.

Specifically, the Regulations seek to—

- (i) establish licensing requirements for commercial vehicle owners, operators and drivers;
- (ii) prescribe safety, inspection and compliance obligations for commercial vehicles;
- (iii) introduce safety equipment standards including speed governors, telematics and underride protection devices;
- (iv) regulate driver conduct, maximum working hours and safety training;
- (v) define cargo loading and securement standards;
- (vi) provide rules for parking, breakdowns and accident reporting;
- (vii) empower the Authority to conduct safety audits and tow stalled vehicles;
- (viii) introduce penalties for non-compliance and provide for licence suspension or revocation; and

- (ix) create a framework for appeals and recordkeeping.

This is therefore, to request the public and all persons likely to be affected by the proposed Rules and Regulations to submit written memoranda to reach the undersigned within fourteen (14) days from the date of publication of this notice. The memoranda should be addressed to:

The Principal Secretary,
State Department for Transport,
Ministry of Roads and Transport,
Transcom House, Ngong Road,
P.O. Box 52692-00200, Nairobi.
Telephone: +254-20-2729200
Website: www.transport.go.ke

or

E-mail: info@transport.go.ke

Copy to comments@ntsa.go.ke

The Regulatory Impact Statements and proposed instruments are available on the Ministry's website (www.transport.go.ke) and the National Transport and Safety Authority website (www.ntsago.ke). Hard copies may also be requested through the Ministry's email address during normal working hours.

Dated the 4th June, 2025.

DAVIS CHIRCHIR,
Cabinet Secretary for Roads and Transport.